

TAB 3



Board of Education Report

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File #: Rep-249-22/23, Version: 1

Approve the Cancellation of Five Projects and Amend the Facilities Services Division Strategic Execution Plan to Incorporate Therein

May 23, 2023

Facilities Services Division

Action Proposed:

Approve the cancellation of five projects listed in Attachment A and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein. The projects have been on hold as the scope of each as defined is no longer required.

Background:

Los Angeles Unified School District's (Los Angeles Unified or District) \$33.1 billion facilities Bond Program has operated under the framework of the School Upgrade Program since January 2014, when the program's focus shifted from constructing new facilities to address decades of overcrowding, to addressing aging existing school facilities. Projects developed under the School Upgrade Program are upgrading, modernizing, and replacing aging and deteriorating school facilities, updating technology, and addressing facilities inequities. To date, the District has invested more than \$23 billion in school facilities and completed over 23,450 school modernization projects.

Due to the nature of working on existing campuses, the Bond Program adapts to changes in the operating school environment by revising and reassessing projects when necessary. During the course of the evaluation, staff determined that five projects that have been on hold should be cancelled. Please refer to Attachment A for a project list and the reasons for each project cancellation.

This action is necessary for the Facilities SEP to be an accurate reflection of the remaining work that will be executed as part of the current Bond Program. This proposal does not request approval to authorize any new projects.

Bond Oversight Committee Recommendations:

This item was considered by the School Construction Bond Citizens' Oversight Committee (BOC) at its meeting on April 27, 2023. Staff has concluded that this proposed Facilities SEP amendment is in alignment with BOC recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP.

Expected Outcomes:

Staff anticipates the Board of Education (Board) will approve the cancellation of projects listed in Attachment A and amend the Facilities SEP to incorporate therein. The Board's approval will permit any unspent Bond Program funds associated with the cancelled projects to return to the programs under which the projects were originally defined. Also, staff will be able to produce a 2023 update to the Facilities SEP that represents the remaining funded work that will be executed as part of the Bond Program.

Board Options and Consequences:

Adoption of the proposed action will authorize staff to proceed with the cancellation of the projects in Attachment A, thereby removing them from the Facilities SEP and returning any unspent funds to the Bond Program to be used for the development of future project proposals subject to review by the BOC and approval by the Board. If staff's proposal is not approved, the projects and their associated funding will remain on hold indefinitely as the defined scope for these projects is no longer required and will not be executed.

Policy Implications:

The proposed action does not change current District policies.

Budget Impact:

Bond Program funds are associated with the projects included in this proposed action. There is no impact to the General Fund. The budgets and commitments related to projects shown on Attachment A are being reviewed and analyzed to determine the amount of funds that can be made available to the Bond Program to develop future project proposals subject to review by the BOC and approval by the Board. Approximately \$21.9 million of unspent funds is anticipated to be made available and returned to the respective program under which the cancelled project was defined.

Student Impact:

Cancellation of projects that are no longer needed will return unspent funds to the Bond Program to support the development of future project proposals that address unmet school facilities needs and provide students with a safe school environment that promotes teaching and learning.

Equity Impact:

The Bond Program is focused on improving equity between newer and older schools so that every student has an equal opportunity for success.

Issues and Analysis:

The projects listed in Attachment A are proposed for cancellation because the project scope either no longer aligns with the priorities identified by school administrators and community stakeholders or is no longer needed due to changes in school operations. The cancellation of these projects will remove them from the Facilities SEP, which maintains schedule, total project count, and overall program cost accuracy for the Bond Program, and will ensure that the next annual Facilities SEP update includes only the scope that will move forward in the Bond Program and advance the Los Angeles Unified 2022-2026 Strategic Plan.

Attachment A is organized by program type and lists the projects that are proposed for cancellation including the Board Districts and Regions where projects were located, as well as the reason for cancellation.

Attachments:

Attachment A - Cancellation of Projects

Attachment B - BOC Resolution

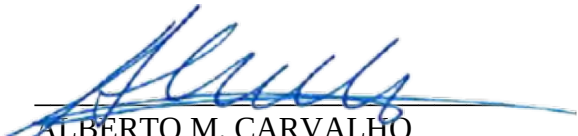
Informatives:

None

Submitted:

04/19/2023

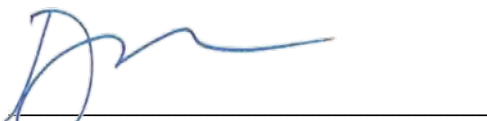
RESPECTFULLY SUBMITTED,


ALBERTO M. CARVALHO
Superintendent

APPROVED BY:


PEDRO SALCIDO
Deputy Superintendent,
Business Services and Operations

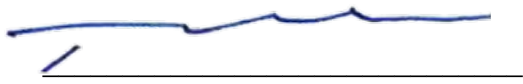
REVIEWED BY:


DEVORA NAVERA REED
General Counsel☒ Approved as to form.

APPROVED AND PRESENTED BY:


MARK HOVATTER
Chief Facilities Executive
Facilities Services Division

REVIEWED BY:


TONY ATIENZA
Director, Budget Services and Financial Planning☒ Approved as to budget impact statement.

Program Type	School Name	Project Name	BD	Region	Reason For Cancellation	Project Number	Original BOE Report
Region Priority	Roybal Learning Center	Roybal Learning Center - Safety Upgrades to Baseball Field	2	East	Project scope is cost prohibitive; an operational solution was implemented to address the situation.	10369417	225-17/18
	Sharp ES	Sharp ES - Install Chain Link Fence	6	North	Project scope will not be implemented as proposed project location is public-right-of-way. An operational solution was implemented to address the situation.	10372401	233-21/22
	Westchester Enriched Sciences Magnets	Westchester Enriched Sciences Magnets - Auditorium Renovation	4	West	Project scope is cost prohibitive.	10103297	302-09/10
Major Renovations and Reconfigurations	Playa Vista ES	Playa Vista ES - Classroom Addition	4	West	Enrollment levels have declined and the additional classrooms are no longer required.	10367415	181-15/16
Adult and Career Education	Abram Friedman Occupational Center	Friedman Occupational Center - HVAC, Fire Alarm & Elevator Upgrades	2	East	Project scope is cost prohibitive. Facilities and Division of Adult and Career Education will explore alternative operational solutions.	10368203	252-16/17

LOS ANGELES UNIFIED SCHOOL DISTRICT

SCHOOL CONSTRUCTION BOND CITIZENS' OVERSIGHT COMMITTEE

Margaret Fuentes, Chair
LAUSD Student Parent
D. Michael Hamner, FAIA, Vice-Chair
American Institute of Architects
Jennifer McDowell, Secretary
L.A. City Mayor's Office
Scott Pansky, Executive Committee
L.A. Area Chamber of Commerce

Neelura Bell
CA Charter School Association
Robert Campbell
L.A. Co. Auditor-Controller's Office
Jeffrey Fischbach
CA Tax Reform Assn.
Chris Hannan
L.A. Co. Federation of Labor AFL-CIO
Hyepin Im
L.A. City Controller's Office
Brian Mello
Assoc. General Contractors of CA
Dr. Clarence Montecarlo
Tenth District PTSA
William O. Ross IV
31st District PTSA

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LAUSD Student Parent
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Dolores Sobalvarro
AARP
Celia Ayala (Alternate)
Early Education Coalition
Chad Boggio (Alternate)
L.A. Co. Federation of Labor AFL-CIO
Peggy Robertson (Alternate)
Assoc. General Contractors of CA
Connie Yee (Alternate)
L.A. Co. Auditor-Controller's Office

Joseph P. Buchman – Legal Counsel
Burke, Williams & Sorensen, LLP
Lori Raineri and Keith Weaver – Oversight Consultants
Government Financial Strategies Joint Powers Authority

Timothy Popejoy
Bond Oversight Administrator
Perla Zitle
Bond Oversight Coordinator

RESOLUTION 2023-12

BOARD REPORT 249-22/23

**RECOMMENDING BOARD APPROVAL FOR THE CANCELLATION OF FIVE PROJECTS AND
AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO
INCORPORATE THEREIN**

WHEREAS, District Staff proposes that the Board of Education (Board) approve the cancellation of five projects listed in Attachment A of Board Report No. 249-22/23 and amend the Facilities Services Division (Facilities) Strategic Execution Plan (SEP) to incorporate therein; and

WHEREAS, To date, the District has invested more than \$23 billion in school facilities and completed over 23,450 school modernization projects; and

WHEREAS, District staff determined the five projects that have been on hold should be cancelled as the scope of each as defined is no longer required; and

WHEREAS, This action is necessary for the Facilities SEP to be an accurate reflection of the remaining work that will be executed as part of the current Bond Program; and

WHEREAS, Adoption of the proposed action will authorize District staff to proceed with the cancellation of the projects in Attachment A, thereby removing them from the Facilities SEP and returning any unspent funds to the Bond Program to be used for the development of future project proposals subject to review by the BOC and approval by the Board; and

WHEREAS, Approximately \$21.9 million of unspent funds is anticipated to be made available and returned to the respective program under which the cancelled project was defined; and

RESOLUTION 2023-12**RECOMMENDING BOARD APPROVAL FOR THE CANCELLATION OF FIVE PROJECTS AND AMEND THE FACILITIES SERVICES DIVISION STRATEGIC EXECUTION PLAN TO INCORPORATE THEREIN**

WHEREAS, The projects listed in Attachment A are proposed for cancellation because the project scope either no longer aligns with the priorities identified by school administrators and community stakeholders or is no longer needed due to changes in school operations; and

WHEREAS, District Staff has concluded that this proposed Facilities SEP amendment is in alignment with the Bond Oversight Committee (BOC) recommendations and will facilitate Los Angeles Unified's ability to successfully implement the Facilities SEP; and

NOW, THEREFORE, BE IT RESOLVED THAT:

1. The School Construction Bond Citizens' Oversight Committee recommends that the Board of Education approve the cancellation of five projects and amend the Facilities SEP to incorporate therein, as described in Board Report No. 249-22/23, a copy of which is attached hereto in the form it was presented to the BOC and is incorporated herein by reference.
2. This resolution shall be transmitted to the Los Angeles Unified School District Board of Education and posted on the Oversight Committee's website.
3. The District is directed to track the above recommendation and to report on the adoption, rejection, or pending status of the recommendations as provided in section 6.2 of the Charter and Memorandum of Understanding between the Oversight Committee and the District

ADOPTED on April 27, 2023, by the following vote:

AYES: 12

ABSTENTIONS: 0

NAYS: 0

ABSENCES: 3

/Margaret Fuentes/

Margaret Fuentes
Chair

/Michael Hamner/

D. Michael Hamner
Vice-Chair